

		informal resolution.’ [Citation.] Perhaps after 11 years it is necessary to remind trial counsel and the bar once again that ‘[a]rgument is not the same as informal negotiation’ [citation]; that attempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ [citation]; and that ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel. . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.’ [Citation.]” (<i>Id.</i>, at p. 1294.) On 9-18-23 under ROA No. 132, the parties filed a Joint Statement stating that they engaged in a telephonic meet and confer conference on 8-14-23 and resolved the motion as to a number of requests, while a number of requests remained at issue. The Joint Statement also states, “Responding party indicated in its opposition to the motion that it will supplement its response to the following categories, which is a subset of those listed above within this Section 3: 19, 20, 22, 23, 36, 57-59, 66-68, 75-81, 82, 87, 96. Responding party remains so willing.” (Joint Statement; 2:8-10.) However, in reviewing Defendant’s Separate Statement (DSS), filed on 7-10-23 under ROA No. 114, it is not clear whether Defendant is willing to respond to the requests listed in the Joint Statement or to the requests that Defendant represented it would comply with in its initial responses. For example, Defendant’s response to Request No. 45 represents that Defendant would produce documents subject to a protective order (DSS; 45:24-45:1.) The Joint Statement does not list Request No. 45 as a Request that Defendant is willing to supplement. Approximately 60 requests remain at issue which is a significant number of unresolved issues. Finally, the Joint Statement does not give explain the issues that separate the parties from resolving the remaining requests at issue. Therefore, the court finds that further meet and confer efforts are necessary to attempt informal resolution of the remaining discovery requests at issue. The court requests the lead trial attorneys to appear in court at the hearing on 9-26-23 to further meet and confer regarding the discovery requests still at issue. At the hearing on 9-26-23, the court will set a date for the filing of a supplemental Joint Statement regarding the discovery requests that are still at issue after the meet and confer conference.
14	30-2022-01254026	Plaintiff’s (Primary Care Associates of California, Inc.) Motion to Compel the Depositions of Defendant Alexis

	Primary Care Associates of California, Inc. v. Mejia	Mejia and the Person Most Knowledgeable of Defendant A&E Solutions (PMK) and to Continue the Trial Date (Motion), filed on 4-5-23 under ROA No 62, is GRANTED as to the deposition of Defendant—Alexis Mejia, DENIED as to the PMK, and MOOT as to the request for a trial continuance. Code of Civil Procedure section 2025.450 states in part, "(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. [¶] (b) A motion under subdivision (a) shall comply with both of the following: [¶] (1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. [¶] (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. . . ." On 7-12-22, Plaintiff Notice of Deposition the depositions of Defendant—Alexis Mejia and the PMK with Notices of Deposition scheduled for 8-23-22. (Farivar Decl., ¶ 5 and Exhibit A.) Both deponents failed to appear. (Farivar Decl., ¶ 6.) Plaintiff's counsel made attempts to meet and confer with counsel for Defendant—Alexis Mejia to schedule the deposition of Defendant—Alexis Mejia, but Defendant Mejia has not appeared for deposition. (Farivar Decl., ¶¶ 10-21.) Plaintiff's counsel also requested a date for the deposition of the PMK. (Farivar Decl., ¶ 10 and Exhibit D.) Defendants have failed to provide available dates for their depositions. (Farivar Decl., ¶ 22.) The Motion complies with Code of Civil Procedure section 2025.450. The Motion is unopposed. Therefore, the court GRANTS Plaintiff's (Primary Care Associates of California, Inc.) Motion to Compel the Depositions of Defendant Alexis Mejia and the Person Most Knowledgeable of
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		Defendant A&E Solutions (PMK) filed on 4-5-23 under ROA No 62. The depositions of Defendant—Alexis Mejia and the PMK shall occur within 30 days from the date of service of the notice of the court’s ruling at a location and time agreed upon by the parties. The court DENIES the Motion to the extent it requests a continuance because the trial was continued by Stipulation and Order filed on 6-9-23 under ROA No. 71. The court awards a monetary sanction in the amount of against Defendants, jointly and severally in the amount of \$1,800.00. (Code Civ. Proc. § 2025.450(g)(1); Cal. Rules of Court, rule 3.1348; Farivar Decl., ¶ 23.) The Motion is MOOT as to the request to continue trial because trial was continued pursuant to stipulation on 6-9-23. Plaintiff is to give notice.
15	30-2019-01076330 Sun v. Wu	Plaintiffs’ (Bin Sun, Shiming Liang Pang and Da Jen Gao) Motion to Allow Remote Testimony of Witnesses, filed on 5-17-23, under ROA No. 191, is CONTINUED to 10-24-23 at 9:00 a.m. in Department C32. Defendants’ (Feiwen Wu and Linchun Zhao, individually and as trustees of the Zhao Revocable Trust) Opposition to Plaintiffs’ Motion to Allow Remote Testimony of Witnesses (Opposition), filed on 9-15-23 under ROA No. 282, was not served on Plaintiffs 9 court days prior to the hearing and was not served by means reasonably calculated to ensure delivery by no later than the close of the next business day as required by Code of Civil Procedure section 1005, subdivisions (b) and (c). Specifically, although Plaintiff Bin Sun was served by both email and mail, Plaintiffs Da Jen Gao and Shiming Liang Pang were served by mail only to addresses in China. Further, given the untimely service of the Opposition and lack of a Reply, it is unclear if the Plaintiffs, who are currently unrepresented, are aware of the hearing on this Motion on 9-26-23. The court granted the Motion to be Relieved by Plaintiffs’ prior attorney on 8-15-23. (8-15-23 Minute Order.) The Order granted the Motion to be Relieved did not notify Plaintiffs that the next scheduled hearing in the action was on 9-26-23. (Order filed on 8-15-23 under ROA No. 276.) Therefore, the court CONTINUES the hearing on this Motion to 10-24-23 at 9:00 a.m. in Department C32. Defendants are to give notice.
16	30-2019-01064196 Alpay v. Alvord	Plaintiffs’ (John Alpay, Rochelle Alpay, Autumn Alpay, Saige Alpay, and Logan Alpay) Motion to Tax Costs